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CASE #	CASE NAME	HEARING NAME
CVRI2305019	RICARDO VS MILLER ENVIRONMENTAL, INC.	MOTION TO CONTINUE OR DENY DEFENDANTS' MSA UNTIL COMPLETION OF COURT-ORDERED DISCOVERY

Tentative Ruling: The Court GRANTS Plaintiff's Motion to Continue Defendant's Motion for Summary Adjudication and grants Plaintiff leave to file a supplemental opposition. Because the Court is continuing the MSA, trial shall likewise be continued. See schedule, below.

Factual / Procedural Context:

On April 29, 2026, Plaintiff brought the instant motion to continue or deny Defendants' MSA pending completion of Court-ordered and outstanding discovery. Plaintiff seeks to continue the date of the MSA hearing until after Defendants comply with the Court's March 10, 2026, order requiring PMK depositions to proceed and until after Plaintiff obtains outstanding discovery necessary to oppose the MSA.

On May 5, 2026, the Court granted Defendants' motion to hear their MSA, which was set for June 22, 2026, within 30 days before trial, which is currently set for July 17, 2026.

Later, on May 5, 2026, Plaintiff applied ex parte to continue or deny Defendants' MSA pending completion of Court-ordered and outstanding discovery. Plaintiff's ex parte application mirrors the instant noticed motion.

On May 28, 2026, the Court granted Plaintiff's ex parte application and continued the hearing on the MSA to July 1, 2026. The Court further continued all related deadlines to the new hearing date.

Defendants oppose the underlying motion, arguing that it is moot because the Court has already granted Plaintiff's ex parte application based on the same facts and arguments, and continued the motion on their MSA. Defendants further argue that Plaintiff has already taken the deposition of their PMK. Accordingly, Defendants seek sanctions in the amount of \$2,500.00 against Plaintiff.

In reply, Plaintiffs argue that the motion is not moot because the PMK that Defendants produced for deposition currently works for GGG Demolition and has not worked for Miller Environmental since 2017. Accordingly, Plaintiffs contend that Defendants failed to produce an appropriate PMK for Miller Environmental, and as such, discovery remains outstanding. Plaintiffs further argue that Defendants failed to produce thousands of pages of requested documents until the deposition of their PMK on June 10 and 11, 2026. As such, Plaintiffs assert that new facts exist to support their motion to continue Defendants' MSA in this matter.

Analysis

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.” (C.C.P. § 437c(h).)

Defendants argue that the instant motion to continue or deny Defendants’ MSA is an improper motion for reconsideration under C.C.P. § 1008(a), as the Court granted the requested relief on May 28, 2026, when it granted Plaintiff’s ex parte application for a continuance under C.C.P. § 437c(h) based on the same arguments and facts as the underlying motion. Indeed, both the initial motion and ex parte application were premised upon outstanding discovery, specifically the Court-ordered depositions of Defendants’ PMK, and Miller’s responses to Request for Production, Set Three, and Special Interrogatories, Set Two. (Motion, pp. 7-9; Ex Parte App., pp. 8-10.) However, the evidence shows that the discovery remains outstanding. Specifically, Plaintiff alleges that Miller’s responses to Request for Production, Set Three remain incomplete, and Plaintiff’s motion to compel further responses to Special Interrogatories, Set Two will not be heard until June 25, 2026.

In the Order granting ex parte relief, the Court declined to order Defendants to produce PMK witnesses or provide further verified responses regarding “communications, jobsite information, PPE and safety evidence, project maps, SCAQMD and jobsite materials, and accommodation and interactive-process evidence,” and instead ordered that “Plaintiff shall have a reasonable opportunity to use the completed discovery in preparing opposition papers... The Court reserved all other issues, including sanctions and any discovery enforcement relief, for the noticed discovery motions or further order of the Court.” (Order dated May 27, 2026, ¶ 6-7.)

Here, the evidence shows that Plaintiff did not have a “reasonable opportunity” to use “completed discovery” to prepare his opposition. Plaintiff’s Opposition to the MSA was due on June 11, 2026. However, Plaintiff did not depose Defendants’ PMK until June 10 and 11, 2026. Further, Defendants did not produce further responses and responsive documents to Request for Production, Set Three until June 10 and 11, 2026. In his Reply, Plaintiff contends that new facts essential to justify opposition to Defendants’ MSA exist. Specifically, Plaintiff contends that Defendants’ document production is still missing requested documents regarding internal communications, preservation/search records, employee communications, or other internal electronically stored information (“ESI”), and argues that Defendants’ PMK was unprepared, as he has not been employed by Miller Environmental since 2017, had no knowledge of GGG Demolition’s corporate structure, and did not prepare for the deposition beyond reading the deposition notice. (Reply, p. 8-11.) Accordingly, Plaintiff requests a continuance under C.C.P. § 437c(h) to conduct outstanding discovery concerning Defendants’

knowledge of Valley Fever risks, communications regarding Plaintiff's and Herb Clark's diagnoses, Defendants' relationship and operations, and other responsive documents and ESI.

The Fourth District favors continuing summary judgment motions to resolve matters on their merits, even if a continuance would not serve the competing interest of judicial efficiency. (See *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 399-400 [holding that even if the need to continue a hearing on a motion for summary judgment to conduct outstanding discovery was due to a party's lack of diligence, "the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency."].) In *Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309, the court of appeal found that the trial court had erred in denying a request to continue a summary judgment motion where the request was made at the hearing and the party had not met the standard for a continuance under C.C.P. § 437c(h). The court analogized the granting of an unopposed summary judgment motion to the equivalent of a terminating sanction and held that the continuance was therefore necessitated unless there had been a history of abuse of pretrial procedures or evidence that the violation was willful. In so doing, the court cited cases that suggested that a summary judgment motion granted "based on a curable procedural default... deprives the opposing party of a decision on the merits." (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1213.)

Accordingly, the Court continues the MSA to allow Plaintiff to conduct outstanding discovery to address Defendants' knowledge of Valley Fever risks, communications regarding Plaintiff's and Herb Clark's diagnoses, Defendants' relationship and operations, and other responsive documents and ESI. Plaintiff may file a supplemental opposition to the MSA once such discovery has been completed.

Because the Court is continuing the MSA, the trial shall also be continued as follows:

- Defendant's Motion for Summary Adjudication: December 3, 2026 at 8:30 a.m.
- Trial readiness conference: January 8, 2027, at 8:30 a.m.
- Trial: January 15, 2027, at 8:30 a.m.

Additionally, the Court on its own motion sets an OSC as to why it should not appoint a discovery referee in this matter. CCP § 639(a)(5). OSC set for July 17, 2026 at 8:30 a.m. Declarations pursuant to Local Rule 3116 shall be filed no later than July 10, 2026.